

§ 763. Notice of motion. Notice of motion under sections seven hundred sixty-one or seven hundred sixty-two, including the court's own motion, shall be served upon parties and any agency or institution having custody of the child not less than seven days prior to the return date of the motion. The persons on whom the notice of motion is served shall answer the motion not less than two days before the return date. On examining the motion and answer and, in its discretion, after hearing argument, the court shall enter an order, granting or denying the motion.